

The M.P. Co-Operative Tribunal Regulations, 2000

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State of Madhya Pradesh - Act

The M.P. Co-Operative Tribunal Regulations, 2000

MADHYA PRADESH

India

The M.P. Co-Operative Tribunal Regulations, 2000

Rule THE-M-P-CO-OPERATIVE-TRIBUNAL-REGULATIONS-2000 of 2000

Published on 25 July 2000

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The M.P. Co-Operative Tribunal Regulations, 2000

Published vide Notification No. Co. T. 2000-2022, dated 25th July, 2000, in M.P. Rajpatra (Asadharan), dated 25-7-2000 at pages 918 (11-21)

Notification No. Co. T. 2000-2022, dated 25th July, 2000. - In exercise of the powers conferred by sub-section (12) of Section 77 of the Madhya Pradesh Co-operative Societies Act, 1960 (No. 17 of 1961) and read with sub-rule (5) of Rule 59-A of the Madhya Pradesh Co-operative Societies Rules, 1962, the Tribunal with the previous sanction of the State Government hereby, makes the following regulations, namely:-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These regulations may be called the Madhya Pradesh State Co-operative Tribunal Regulations, 2000.

(2)

They shall come into force with effect from the date of their publication in the "Madhya Pradesh Gazette".

2.

Definitions.

- In these Regulations, unless the context otherwise requires,-

(a)

"Act" means, the Madhya Pradesh Co-operative Societies Act, 1960 (No. 17 of 1961).

(b)

"Agent" means, the person duly authorised by a party to present an application or reply on its behalf before the Tribunal.

(c)

"Government" means, the Government of Madhya Pradesh.

(d)

"Legal Practitioner" shall have the same meaning as is assigned to it in the Advocates Act, 1961 (No. 25 of 1961).

(e)

"Party" means, appellant or the applicant and include his Advocate or any other agent on his behalf and further include the respondent or non-applicant and his/their agent.

(f)

"Rules" means, Madhya Pradesh Co-operative Societies Rules, 1962.

(g)

"State" means, the State of Madhya Pradesh.

(h)

"Words" and "expressions" used but not defined in these Regulations shall have the meaning respectively assigned to them in the Act and Rules made thereunder.

Chapter II

Sittings and Office Hours

3.

Place of hearing.

- All appeals, revision, review petitions shall ordinarily be heard at the headquarters of the Tribunal where it is functioning:

Provided that the Tribunal may also hold its sittings at the Divisional headquarters in the State on such dates as may be notified in the Gazette.

4.

Office Hours.

(1)

Office hours of the officers and staff members of the Tribunal shall be same, as that of other offices of the Government.

(2)

Working hours of the Tribunal for hearing of the cases shall be between 11 AM. and 5 P.M. with break between 2 P.M. and 2.30 P.M. Timings may however, be suitably amended by the Chairman as and when necessary.

5.

Language.

- Language of the Tribunal shall be in English and also in Hindi, provided that the parties to a proceeding before the Tribunal may file documents drawn up in Hindi, if they so desire.

Chapter III

Procedure

6.

Procedure for processing of an appeal revision and review.

(1)

All appeals, revisions, review petitions shall neatly and legibly be typed or may be hand written on a full scap paper of reasonably good quality with one inch margin on either side. Only one side of the papers shall be used in this behalf.

(2)

If appeal, a revision or review petition is typed on any paper in contravention of the provisions of sub-regulation (1) the Registrar shall return the same to the party or his agent for removing the defects within seven days from the date of such return.

(3)

The appeal, revision or review petition, as the case may be shall accompany, as many sets of copies, as there are respondents/non-applicants in the case.

7.

Registration of Appeal, Revision and Review Applications.

(1)

On receipt of appeal or revision or review or a miscellaneous petition, the Registrar shall endorse on it, the date of its receipt, if on scrutiny of appeal, revision or review petition, it is found to be in conformity with the provisions of the rules and regulations, the Registrar shall cause an entry to be made in seriatum in the Register of appeal, revision or review as the case may be, year-wise, in Form "A", in respect of appeal, in Form "B", in respect of revision and in Form "C" in respect of review petition.

(2)

The petitions for restoration, application to set aside ex parte order etc. shall be registered in seriatum yearwise, in a miscellaneous case register in Form "D". The proceedings of such miscellaneous cases shall be taken up in the proceedings of the concerning original record.

(3)

All other applications for interim relief shall be given 1-A Nos. as interim application Nos. 1, 2,3 (as the case may be) in the file of the concerned record itself.

8.

Appeal or review to be filed within time.

(1)

An appeal under Section 78 or under any other provision of the Act or review application under Section 77-A shall be presented within the prescribed period under the Act:

Provided that if any doubt arises as to the date of receipt of the order by the party aggrieved, the decision of the Chairman thereon shall be final:

Provided further that where an appeal or a review application is presented within the prescribed period, but is returned for rectification and if such appeal is again presented with all the defects rectified within the time allowed, it shall be deemed to have been presented within the prescribed period with all the defects rectified.

(2)

When an appeal or a review application is presented after the period prescribed under the Act, it shall be accompanied by a petition supported by an affidavit setting forth the facts on which the appellant or review applicant relies to satisfy the Tribunal that he had sufficient cause for not preferring the appeal or, the review application within such time, with a specific prayer for condonation of delay. The Tribunal shall first dispose of the petition for condonation of delay before admitting the appeal or the review application.

9.

Service of notice.

(1)

If the postal article containing the notice or the summons is received back with an endorsement purporting to have been made by a postal employee to the effect that the addressee or his agent had refused to take delivery of the postal article containing the notice or summons as the case may be, when tendered to him the Tribunal or the Bench issuing it shall declare that the notice or the summons has been duly served :

Provided that the declaration referred to above shall be made notwithstanding the fact that the postal acknowledgment has not been received back on or before the due date in accordance with the provisions of Rule 19-A of Order 5 of the Code of Civil Procedure, 1908.

(2)

Where the Tribunal or the Bench is satisfied that there is reason to believe that the addressee is avoiding service or that for any other reason the notice or summons can not be served by post, the Tribunal or the Bench shall order the notice

or the summons to be served by publication in daily newspaper, circulating in the locality in which addressee is known to have last resided or worked or carried on business or in such other manner, as it may deem fit. The publication charges shall be paid by the appellant or the petitioner as the case may be.

10.

Appearance of parties and consequence of non-appearance.

- Provisions of Rules 1 to 14 of Order IX of the Civil Procedure Code, 1908, shall be applicable to the proceedings before the Tribunal with such modifications as may be necessary for the purpose.

11.

Fixation of the date of hearing.

(1)

The Tribunal shall fix a date for hearing and notice of the dates fixed for hearing shall be issued to the parties concerned by registered post acknowledgment due in the Form "E" annexed to these rules. A copy of the memorandum of appeal, revision, review petition, as the case may be, shall be furnished to the respondent or respondents.

(2)

A copy of the affidavit and the application for suspension of impugned order shall also be furnished to the respondent or respondents alongwith the notice of hearing.

(3)

The charges of registered post shall be borne by the appellant or the petitioner, as the case may be.

Chapter IV

Hearing, Adjournment and Judgements

12.

Procedure for hearing and adjournment.

- On the date fixed for hearing or any other date to which the hearing may be adjourned the party or Advocate of appellant or applicant shall ordinarily be heard first in support of the appeal, the respondent or non-applicant or his Advocate shall, if necessary, be heard next and in such cases the party or the applicant shall be entitled to reply.

13.

Evidence.

(1)

Where a party desires that a witness, is to be examined by the Tribunal in appeal or cause production of document for additional evidence, he may apply to the Tribunal through an affidavit for summoning the person whose attendance is required either to give evidence or to produce document and the Registrar shall issue summons to the party or his Advocate for service on the person concerned, after the Tribunal has passed an order on the affidavit filed.

(2)

Where the person to be summoned is a public servant, the party shall alongwith the application for summons, before summons is granted, pay the Registrar, a sum of money as appears to the Tribunal to be sufficient to defray travelling and other expenses of the person summoned for coming to the Tribunal and going back and for one day's attendance.

(3)

Where the person to be summoned is not a public servant it shall be the duty of the party who takes out the summons to produce the witness or cause the production of documents and where it fails to produce them, it shall be deemed that he has given up the claim of additional evidence.

Additional evidence. - Except in the following conditions, the parties to the appeal shall not be entitled to produce additional evidence whether oral or documentary, before the Tribunal:

(a)

If the authority from whose order the appeal or application is preferred has refused to admit evidence which ought to have been admitted; or

(b)

If the party seeking the additional evidence satisfies the Tribunal that such evidence, notwithstanding, the exercise of due diligence was not within his knowledge or could not be discovered or produced by him at the time when the order under appeal was passed; or

(c)

If the Tribunal requires any document to be produced or witnesses examined so as to enable it to pass just order; and

(d)

For any other sufficient reason Tribunal may allow such evidence or documents to be produced or witnesses examined: Provided that where such evidence is received the other party shall be entitled to produce evidence in rebuttal, if any.

14.

Discovery, inspection and admission of documents.

- The rules under Order IX and XII of the Civil Procedure Code, 1908 shall be applicable to the cases before the Tribunal.

15.

Summoning and Attendance of witnesses.

- The Rules 1 to 21 of Order XVI and Rules 1 to 7 of Order XVI-A of the Civil Procedure Code, 1908 shall be applicable in the proceedings before the Tribunal mutatis mutandis.

16.

Adjournment.

(1)

The Tribunal may, on such terms as it thinks fit and at any stage adjourn the hearing of the appeal, revision or applications for review on its own accord by mentioning in the open Court or on a oral request or by an application supported with affidavit filed by the petitioner or the respondent.

(2)

An application for adjournment shall be presented with an affidavit by the party or a person, who is well acquainted with the facts of the case.

(3)

Each application for an adjournment shall be stamped with the required Court fee and copies of the applications shall also be given to the other party.

17.

Procedure in case of death of an appellant or an applicant.

- The provisions of Order 22 Rules 1 to 13 of the Code of Civil Procedure, 1908 shall apply mutatis mutandis, with regard to death of parties and to bring their legal representatives on record.

18.

Order.

(1)

Every order of the Tribunal shall be in writing and shall be pronounced, immediately after hearing or on the date fixed for the purpose, which shall not be more than fifteen days from the date of the final hearing.

(2)

The order shall be signed and pronounced after giving notice to the parties concerned. In case the order is not pronounced on the date fixed, it may be pronounced within fifteen days from the date originally fixed for the hearing.

(3)

The copy of every decision or order of the Tribunal shall be supplied to the appellant and such other parties as in the opinion of the Tribunal are likely to be affected by the decision or order, either in person or through registered post.

Chapter V

Miscellaneous

19.

Copies of documents and orders of Tribunal.

(1)

Any party to any proceedings before the Tribunal may apply to the Registrar for the inspection of any documents, or for a certified copy of the any document and for the orders of the Tribunal.

(2)

Application for copies or for inspection of the documents shall set out of the name and address of the applicant in full, the date and description of documents or order of which and purpose for which a copy is required. Any application which is not in the proper form, shall be required to be represented in proper form.

(3)

Certified copies of documents or order shall be prepared on a full scap paper with one inch margin on either side and

typed in double space.

(4)

Certified copies of documents or order shall be signed and delivered by the Registrar to the party concerned on payment of fee prescribed for preparing the copies. In the absence of the Registrar due to leave or, otherwise, the same shall be signed by the Senior most official of the Tribunal.

(5)

If the Registrar feels any doubt about the propriety of granting the copy of any documents, he shall place the application before the Chairman and act in accordance with his orders.

(6)

With regard to presentation of applications, payment of charges and delivery of certified copies, Rules 472 to 522 of Chapter 23 of M.P. Civil Court Rules shall apply mutatis mutandis.

(7)

All the certified copies of the orders passed by the Tribunal shall be certified to be "True copy" by the Registrar of the Tribunal and shall be signed by him. In his absence due to leave or otherwise, the same shall be certified and signed by the senior most official of the Tribunal.

20.

Listing of cases.

(1)

A cause list of the cases to be listed before the Tribunal shall be prepared in the office by the Registrar and in his absence due to leave or otherwise, by the senior most official of the Tribunal. The cases shall be listed in motion hearing and for final hearing in Chronological order.

(2)

Cases for motion hearing shall be listed for admission and for orders on any application of interim nature.

(3)

In Part B, such cases for final hearing shall be listed in which all parties have been served and record of the Lower Court, if any, has been received and the case is otherwise ripe for final hearing.

(4)

The Registrar shall take care to list sufficient number of cases in motion and final hearing so that hearing can proceed through out the working day.

(5)

Whenever Bench of the Tribunal is not available, the Registrar shall adjourn the cases which were scheduled to be listed before the Bench on the dates on which the Bench is not available.

(6)

All correspondence, letters, summons and notices shall be signed by the Registrar and in his absence, due to leave or otherwise, by the senior most official of the Tribunal.

21.

Order and directions in certain cases.

- The Tribunal may make such orders or give such directions as may be necessary or expedient to give effect to or in relation to its orders or to prevent abuse of its process or to secure the ends of justice.

22.

Dress for Chairman and departmental members.

(1)

The Chairman and departmental members, if any, shall wear white shirt, white band, black coat, white striped or gray trousers and gown.

23.

Dress for Legal Practitioner.

- Every Legal Practitioner shall appear before the Tribunal in his professional dress and shall also wear gown.

24.

Public holidays and vacation.

(1)

The Chairman, members of the Tribunal and officers and staff of the Tribunal shall observe all such public and general

holidays as are prescribed by the High Court of Madhya Pradesh, for its observance. However, there shall only be two closed Saturdays for the Tribunal and its office, as have been notified by the High Court as closed Saturdays for the High Court and its registry. In addition to this, the Tribunal shall observe all such local holidays or any other holiday, declared by the Government or local authority from time to time.

(2)

(i)

The Chairman shall be entitled to 15 days summer vacation and one week's winter vacation in one calendar year, during the vacation period as may be notified by the High Court as its vacation period, in addition to the usual earned leave admissible to him under the rules. The Chairman shall give intimation to the Government of the period during which he would avail vacation.

(ii)

After publication of the calendar by the High Court containing list of holidays and vacation, the Tribunal shall also notify its vacation period in the Gazette.

25.

Power and functions of the Registrar.

(1)

The Registrar shall be the Principal Administrative Officer of the Tribunal and shall be over all in charge of general office administration and shall be responsible to keep day to day working of the Tribunal and its office, subject to the orders and directions of the Chairman and shall be subordinate to him.

(2)

He shall keep in his custody the official seal of the Tribunal.

(3)

Subject to any general or special directions of the Chairman, the seal of the Tribunal shall not be affixed to any order, summons or other process save under the authority in writing of the Registrar.

26.

In addition to the above referred powers, the Registrar shall have the following powers and perform duties, subject to any general and special order of the Chairman namely.

(1)

To receive all appeals, revision, review petition and other applications, documents.

(2)

To receive all questions arising out of the scrutiny of the applications before they are registered.

(3)

To require any application presented to the Tribunal to be amended in accordance with the rules and regulations.

(4)

Subject to the directions of the respective Benches to fix date of hearing of the applications or other proceedings and issue notice thereof.

(5)

To order grant of copies of documents to parties to proceedings;

(6)

To requisition records from custody of any Court or the authority;

(7)

The Registrar shall, with the prior approval of the Chairman, distribute work among the Class III and Class IV staff members of the Tribunal and shall also prepare duty list accordingly.

27.

Seal and emblem.

- The Tribunal shall use a circular seal of 2" diameter as its official seal with the National emblem with the following inscription in Hindi:

"Madhya Pradesh Rajya Sahakari Adhikaran", Bhopal.

28.

Disposal by Common order.

- If various appeals or revisions pending before the Tribunal, involve common point for consideration, the Tribunal may

club together all such matters and dispose them of by a common order.

29.

Publication of orders.

- Such of the orders of the Tribunal as deemed fit for publication and certified as "approved for reporting" by the Chairman and the member, if any, as the case may be, in any authoritative report, may be released for publication on such terms and conditions, as may be laid down by the Tribunal.

30.

Preservation and distribution of disposed of records.

(1)

By 5th of each succeeding month, the Reader shall prepare a separate list of the disposed of second appeal, first appeal, revision, review petition and miscellaneous cases which have been decided by the Tribunal in the preceding month. On each of the disposed of record the Reader shall append a table of contents showing therein the amount of Court fee label affixed in the concerned record, total page number of order sheets and other documents in such case. He shall also enter the name of the parties and date of decision/order. He shall submit this list along with the concerned records of the decided cases to the Registrar, who shall, after verifying the correctness of the entries, made by the Reader, consign the same to the record room by delivering to the Record keeper and shall also obtain his acknowledgment. All the Court fees labels affixed in such records shall be duly punched and cancelled in the manner, as has been shown under Madhya Pradesh Civil Court Rules.

(2)

Record keeper shall keep such records in separate Bastas. He shall keep the records of second appeal, first appeal, revision, review petition and miscellaneous cases separately in different bastas, in year-wise manner. He shall also paste a list on each Basta showing therein the number of cases kept in it. If record of any case is sent to High Court or Supreme Court, the Record Keeper shall, keep a requisition letter in place of said record with his endorsement under his initial indicating that the record has been sent to the High Court, Supreme Court etc. on such & such date..... vide despatch No.....

(3)

The record of first, second appeal and revision shall be preserved for a period of ten years from the date of disposal. The record of other cases other than first, second appeal and revision shall be preserved for a period of five years.

(4)

After expiry of the requisite period of ten or five years, as the case may be the records shall be destroyed by shredding by the Registrar. Record Keeper shall obtain the order of the Registrar for shredding of records.

(5)

The Court and other office registers shall also be preserved for 10 years and after expiry of ten years the same shall also be destroyed in the manner indicated in sub-regulation (4).

31.

Rules relating to civil rules of practice and procedure to be followed.

- Whenever these regulations are silent on the question of any procedure, the Tribunal shall follow the procedure stipulated under the Code of Civil Procedure, 1908 (No. V of 1908).

32.

(i)

Appellant or applicant as the case may be, along with memo of appeal or any other petition, shall file his/their registered address. Similarly the respondents or non-applicants as the case may be, on his/their first appearance before the Tribunal, shall file their registered address.

(ii)

Legal practitioners, representing the parties, shall mention their full postal address on the Vakalatnama.

33.

All notices, letters, orders issued by this Tribunal for service on parties or any other officers, shall be served by the concerned Asstt. Registrar, Dy. Registrar, Joint Registrar, Additional Registrar or Registrar, Co-operative Societies, as the case may be, and shall be returned back to the Tribunal after due service and complied before due date fixed in the matter. Any instance of non-compliance, without any sufficient cause or excuse shall expose the concerned officer at fault, for an action to disobey the judicial order of the Tribunal.

34.

Assistant, Deputy, Joint or Additional Registrar of the Co-operative Department in the State, while despatching their records to the Tribunal, shall invariably mention in their covering memo, number of appeal, revision or miscellaneous petition of the Tribunal and date of hearing fixed in the matter by the Tribunal.

35.

It will be obligatory on the applicant or the appellant as the case may be, to file the certified copies of all orders under challenge before the Tribunal in the Appeal or Revision, as the case may be. However, a second appeal may be accepted in absence of certified copy of Trial Court's order and in its place the appellant may file true copy of the order of the Trial Court.

36.

Party filing the revision petition, shall along with such petition also file photocopy of the petition, stay application and its reply, if any, filed in the Lower Court and all other necessary documents in support of his revision petition along with such petition.

37.

Any party sending its appeal, revision or any other petition by post, shall also enclose with it one envelope containing (affixed thereon) postage tickets of Rs. 20/- for issuance of a notice to him for motion hearing. In the absence of such postal charges, such appeal, revision or miscellaneous petitions received through post shall not be listed for hearing and shall be filed.

38.

Affidavits.

(1)

The Tribunal may at any stage of a proceeding call for proof of any fact by an affidavit.

(2)

Every affidavit for use in the Tribunal shall bear the general heading as "Before the Madhya Pradesh Co-operative Tribunal, Bhopal" and shall set for the the cause title of the proceeding or matter in which it is sought to be used and, in the case of an affidavit in an interlocutory application, also' the cause title of the interlocutory application.

(3)

An affidavit shall be confined to statements of facts and avoid arguments and when it contains statements of facts not within the declarant's personal knowledge but based on information received, by the declarant, he shall state so and shall also state that he believes them to be true and shall also give the source of such information wherever possible and the grounds of his belief, if any.

(4)

Affidavits intended for use before the Tribunal may be made before and attested by any of the following persons:-

(a)

Any Judicial Officer, Magistrate or other Presiding Officer of Civil or Criminal Court.

(b)

Any Notary appointed under the Notaries Act (Central Act LIII of 1952).

(5)

The deponent of an affidavit shall sign or make his mark at the foot of every page of the affidavit and also at the end of it. The Attesting Officer shall authenticate every correction, alteration or interlineation by placing his initials near it and also enter at the foot of every page the number of such authenticated corrections, etc. or enter the word 'nil', if there is none and initial such entry and sign his name and enter his designation at the end of the affidavit and affix thereto his official seal or seal of his Court together with the date. The fact of the oath having been administered or the solemn affirmation having been made in his presence shall be noted by the attesting officer, before he affixes his signature.

(6)

If the deponent is not personally know to the attesting officer, he shall be identified by a person known to the attesting officer, and the fact of such identification together with the name description of the person making the identification shall be noted at the end of the affidavit and the signature of such person shall be affixed. If the deponent is not known to the attesting officer or can not be so identified, the left hand thumb impression of such deponent shall also be affixed at the end of the affidavit and be certified to be such impression by the attesting officer.

(7)

If the deponent is illiterate or blind or is not acquainted with the language in which the affidavit is made or written, the affidavit shall be read out the explained to him in the language known to him in the presence of the attesting officer, who shall certify that it was so explained to him and the deponent appeared to understand the same and signed his name or made his mark in his presence.

39.

Costs.

(1)

The Bench shall have the powers to award costs of and incidental to any proceeding before it and may direct by whom such costs shall be paid. After the judgement is delivered, a memo of costs shall be prepared and annexed to the judgement or order and signed by the Registrar and sealed with the seal of the Tribunal. Such a memo shall be conclusive evidence of the costs incurred in appeals, petitions or other proceedings.

(2)

In the calculation of costs, all expenditure incurred by the successful party in taking the necessary copies required to be filed as part of the memorandum of appeal, the Court fee paid on the memorandum of appeal or petition and Vakalatnama certified copies and other documents required to be produced by law; the process fee paid, if any, adjournment costs and pleaders fees not exceeding rupees two hundred as may be fixed by the Bench hearing the case, shall be included. Any other item of expenditure specifically ordered by the Tribunal to be treated as costs shall also be included :

Provided that when any Bench takes up a case in revision suo motu and passes orders after hearing the parties concerned, no costs shall be ordered against any party.

40.

Clerical or arithmetical mistakes.

- Clerical or arithmetical mistakes in judgements or orders or errors therein from accidental slip or omission, may, at any time, be corrected by a Bench of the Tribunal on its own motion or on the application of any party:

Provided that the Bench before ordering such correction shall give an opportunity of being heard to the parties likely to be affected by such correction.

41.

Proceedings of Tribunal to be judicial proceedings.

- Any proceedings before the Tribunal shall be deemed to be a judicial proceedings within the meaning of Sections 193 and 228 and for the purpose of Section 196 of the Indian Penal Code and the Tribunal shall be deemed to be a Civil Court for the purpose of Section 195 and Chapter XXVI of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974).

42.

Process fees.

- Process fees for issuing notice shall be paid by the appellant or applicant, as the case may be, at the rate of Rs. 2/- per respondent/ non-applicant, as the case may be, in the form of Court fee.

43.

Court fees.

- Court fee payable on Vakalatnama, Memorandum of Appeal, Review, Revision Caveat Application or any other miscellaneous application to be filed in the Tribunal, shall be the same as has been shown in Schedule II, in item No. 1, clause (B), Column 5, clause (E) and item Nos. 10,11 (a) and 12 of the Court Fees Act, 1870 (No. 7 of 1870).

44.

Filing Fees.

- Any party filing certified copy of any document before the Tribunal shall affix Court fees labels of Rs. 2/- on each of such documents.

Form 'A'

[See Regulation 7 (1)]

M.P. State Co-operative Tribunal, Bhopal

Register of Appeal against the orders of Registrar/Joint Registrar etc.

Date of Institution

No. of appeal

Applicant

Name

Description

Place of Residence

(1)

(2)

(3)

(4)

(5)

Respondent

Order appealed from (with case number) name of
parties/name of Lower Court

Date for parties to appear

Order

Name

Description

Place of Residence

Date of confirmation set aside or varied

Remarks

(6)

(7)

(8)

(9)

(10)

(11)

(12)

Form 'B'

[See Regulation 7 (1)]

M.P. State Co-operative Tribunal, Bhopal

Register of Revision

Date of Institution

No. of Revision

Applicant

Non-applicant

Name

Description

Place of residence

Name

Description

Place of residence

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Order against which case filed

Date for parties to appear

Order

Case No.

Name of parties

Name of Lower Court

Date of confirmation set aside or varied

Remarks

(9)

(10)

(11)

(12)

(13)

(14)

Form 'C'

[See Regulation 7 (1)]

M.P. State Co-operative Tribunal, Bhopal

Register of Review Application

Date of Institution

Case No.

Applicant

Non-applicant

Name

Description

Place of residence

Name

Description

Place of residence

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Order sought to be revised

Date for parties to appear

Order date of

confirmation set aside or varied

Remarks

Case No.

Name of parties

(9)

(10)

(11)

(12)

(13)

Form 'D'

[See Regulation 7 (2)]

M.P. State Co-operative Tribunal, Bhopal

Register of Miscellaneous/Restoration cases

Date of Institution

Case No.

Applicant

Name

Description

Place of residence

(1)

(2)

(3)

(4)

(5)

Non-applicant

Application under Section

Date for parties to appear

Order date of order with description

Remarks

Name

Description

Place of residence

Case No.

(6)

(7)

(8)

(9)

(10)

(11)

(12)

Form 'E'

(See Regulation 11)

Notice to Respondent/Non-applicant of the day fixed for the hearing of the Appeal/Revision, Review Petition, Miscellaneous case

Regulation 9 (2)

Civil Appeal/Revision/Misc. Case/No....

M.P. State Co-operative Tribunal, Bhopal

Name of Parties :

Appellant/Applicant

.....

Appeal/Revision/Review/Miscellaneous petition from the order of the Court..... the day of..... in Case No.....

To,

Son of.....Resident of

Caste District

Tehsil

Respondent/Non-applicant

Take notice that an appeal/revision/review/miscellaneous petition from the order mentioned above has been presented by the above named appellant/ petitioner and registered in this Tribunal at number..... and that the day of..... has been fixed for its hearing.

If no appearance is made in your behalf by yourself, your Advocate or some one authorised by law to act for you in this behalf, it will be heard and decided in your absence.

Given under my hand and the seal of the Tribunal, this day of.....

(Seal)

By Order of the Tribunal Registrar

Related AI tags, queries and research notes

Translation